

Amendment No. 1 to HB1128

Crawford
Signature of Sponsor

AMEND Senate Bill No. 1065*

House Bill No. 1128

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 8-10-104, is amended by deleting the section and substituting instead:

(a)

(1) A constable shall not exercise any law enforcement powers and authority conferred upon the constable by §§ 8-10-108, 39-17-1315, 39-17-1350, 40-6-210, 40-6-212, 55-8-152, 57-9-101, 57-9-103, and 57-9-201, if the constable fails to complete the in-service education requirements described in part 2 of this chapter.

(2) A constable who violates subdivision (a)(1) commits a Class C misdemeanor, subject to a fine only. Each day of a violation of this section constitutes a separate offense.

(b) Each constable newly elected or appointed on or after July 1, 2025, must complete one hundred twenty-eight (128) hours of training in law enforcement duties approved by the peace officer standards and training commission. This training must be accomplished during the first year following election or appointment.

(c) Prior to completing the required training, the constable must be paired with another constable who has completed all training requirements or a POST-certified law enforcement officer while performing the constable's official duties. This subsection (c) does not apply to a constable who is elected or appointed within five (5) years of having served as a full-time, POST-certified law enforcement officer.

(d) The one hundred twenty-eight-hour training requirement may be waived if the constable successfully completes a comparable basic law enforcement course within one (1) year of the date of election or appointment.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.